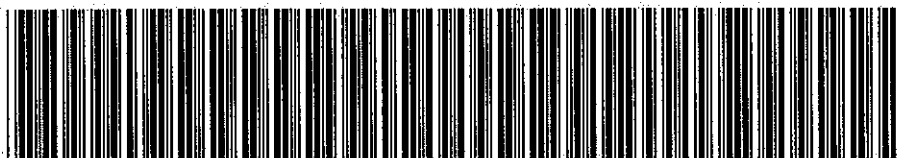


EWR D&I ANNOTATION



FAN-000001L092001DP89-1240

Artemis # : 000001L092001DP89

Record Created Date :

Printed Date : 06/14/2010

Description : DI09-096. SEQ ID 89. 2009 Q2. INCIDENT TAKES PLACE ON A TEXAS STREET. DRIVER OF A 2006 CHEVY COBALT SAYS SHE WAS IN A LEFT TURN LANE WHEN ANOTHER VEHICLE CAME ACROSS THE LANE AND COLLIDED WITH THE RIGHT FRONT. DRIVER CLAIMS TO HAVE BEEN GOING ABOUT 25 MPH. PARTIAL POLICE REPORT GIVEN. GM CLAIMS NO DEFECT. *RM



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE.
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

December 16, 2009

Ms. Gay P. Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI09-096

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2nd quarter of 2009. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 3, 7, 15, 39, 63, 78, 81, 82, 85, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 98, 100, 101, 103, 105, 106, 107, 108, 109, 110, 131, 137, 145, 146, 148, 149, 158, 167, 168, 178, 209, 216, 219, 231, 243, 253, 254, 255, 256, 257, 258, 259, 261, 263, 264, 266, 270, 271, 276, 281, 282, 288, 289, 290, 291, 292, 293, 297, 299, 300, 311, 312, 327, 338, 339, 341, 343, 344, 345, 346, 348, 349, 351, 352, 354, 370, 382, 390, 391	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new

requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

12660

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **January 22, 2010**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement

11 February 2010

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217kb
DI09-096

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated December 16th, 2009 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2009.

GM's response is comprised of 88 disks for the incidents that are the subject of DI09-096.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 3 18605620-675350 and 2009 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 3 18605620-675350_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI09-096
3 18605620-675350
2009 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**



Response: See attached document.

2. **Provide a copy of the Police Accident Report.**

Response: See attached documents and photographs.

The remaining document listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

- 3 18605620-675350 **_01_001** - is the first document responsive to Inquiry no. 1.
- 3 18605620-675350 **_02_001** - is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incident that is the subject of DI09-066, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

<i>(88 Vehicles from the Light Vehicle Template)</i>		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
3	5GAER23D69J [REDACTED]	NISM
7	UNKNOWN	NISM
15	5GADS13S142 [REDACTED]	NISM
39	1G6DU57V090 [REDACTED]	LIT
63	UNKNOWN	NISM
78	1G1AL52F957 [REDACTED]	NISM
81	1G1AK52F257 [REDACTED]	NISM
82	1G1AK55F167 [REDACTED]	NISM
85	1G1AK15F467 [REDACTED]	NISM
87	1G1AK55F267 [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
88	1G1AM15B367	NISM
89	1G1AL15FX67	NISM
90	1G1AK15F367	NISM
91	1G1AL58F977	NISM
92	1G1AK15F077	NISM
93	1G1AK55F577	NISM
94	1G1AK15F477	NISM
95	1G1AK55F577	LIT
96	1G1AK15F077	NISM
98	1G1AK58FX77	NISM
100	1G1AK55FX77	NISM
101	1G1AK15F477	NISM
103	1G1AK18F887	NISM
105	1G1AL58F287	NISM
106	1G1AK18F187	NISM
107	1G1AL58F987	NISM
108	1G1AK58F987	NISM
109	1G1AL58F987	NISM
110	1G1AT58H097	NISM
131	3GNDA23P76S	NISM
137	3GNDA13D48S	NISM
145	2G1WF52E049	NISM
146	2G1WF52E249	NISM
148	2G1WH52K049	NISM
149	2G1WH52K049	NISM
158	2G1WT58N279	NISM
167	2G1WT57K791	NISM
168	2G1WC57M591	NISM
178	1G1ZG57B39F	NISM
209	1GCEK24009Z	NISM
216	1GCHK29K57E	NISM
219	1GBJC34K78E	NISM
231	1GNFC16047J	NISM
243	1GNFK33059R	NISM
253	1GNDS13S642	NISM
254	1GNDT13S052	NISM
255	1GNDT13S052	NISM
256	1GNDS13SX52	NISM
257	1GNDT13S852	NISM
258	1GNDT13S052	NISM
259	1GNDT13S352	NISM
251	1GNDT13S662	NISM
263	1GNDT13S682	NISM
264	1GNDT13S882	NISM
266	1GNDS33S892	NISM
270	1GNES16S866	NISM
271	1GNEV23D29S	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
276	1GNDU03E64D [REDACTED]	NISM
281	1GKEV23D59J [REDACTED]	NISM
282	1GKEV23D99J [REDACTED]	NISM
288	UNKNOWN	NISM
289	1GKDS13S442 [REDACTED]	NISM
290	1GKDT13S442 [REDACTED]	NISM
291	1GKDT13S552 [REDACTED]	NISM
292	1GKDS13S962 [REDACTED]	NISM
293	1GKDS13S462 [REDACTED]	NISM
297	1GKET16S956 [REDACTED]	NISM
299	1GKES12S046 [REDACTED]	NISM
300	1GKES12S956 [REDACTED]	NISM
311	3GTEC13C48G [REDACTED]	NISM
312	3GTEK13378G [REDACTED]	NISM
327	5GTDN136568 [REDACTED]	NISM
338	1G2ZF55B264 [REDACTED]	NISM
339	1G2ZF55B064 [REDACTED]	NISM
341	1G2ZG558364 [REDACTED]	NISM
343	1G2ZH18N374 [REDACTED]	NISM
344	1G2ZG58B574 [REDACTED]	NISM
345	1G2ZH57N584 [REDACTED]	NISM
346	1G2ZG57B384 [REDACTED]	NISM
348	1G2ZH57N684 [REDACTED]	NISM
349	1G2ZF57B584 [REDACTED]	NISM
351	1G2ZJ57B494 [REDACTED]	NISM
352	1G2ZH36N994 [REDACTED]	NISM
354	6G2EC57Y19L [REDACTED]	NISM
370	2G2WP552881 [REDACTED]	NISM
382	5S3ET13S662 [REDACTED]	NISM
390	5GZER13737J [REDACTED]	NISM
391	5GZEV23748J [REDACTED]	NISM

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing

responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read "Gay P. Kent", written in a cursive style.

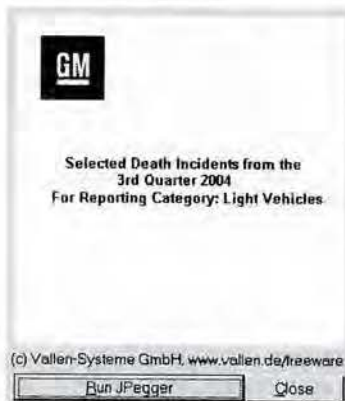
Gay P. Kent,
Director, Product Investigations
and Safety Regulations

Enclosures: 88 Disks
Attachment A

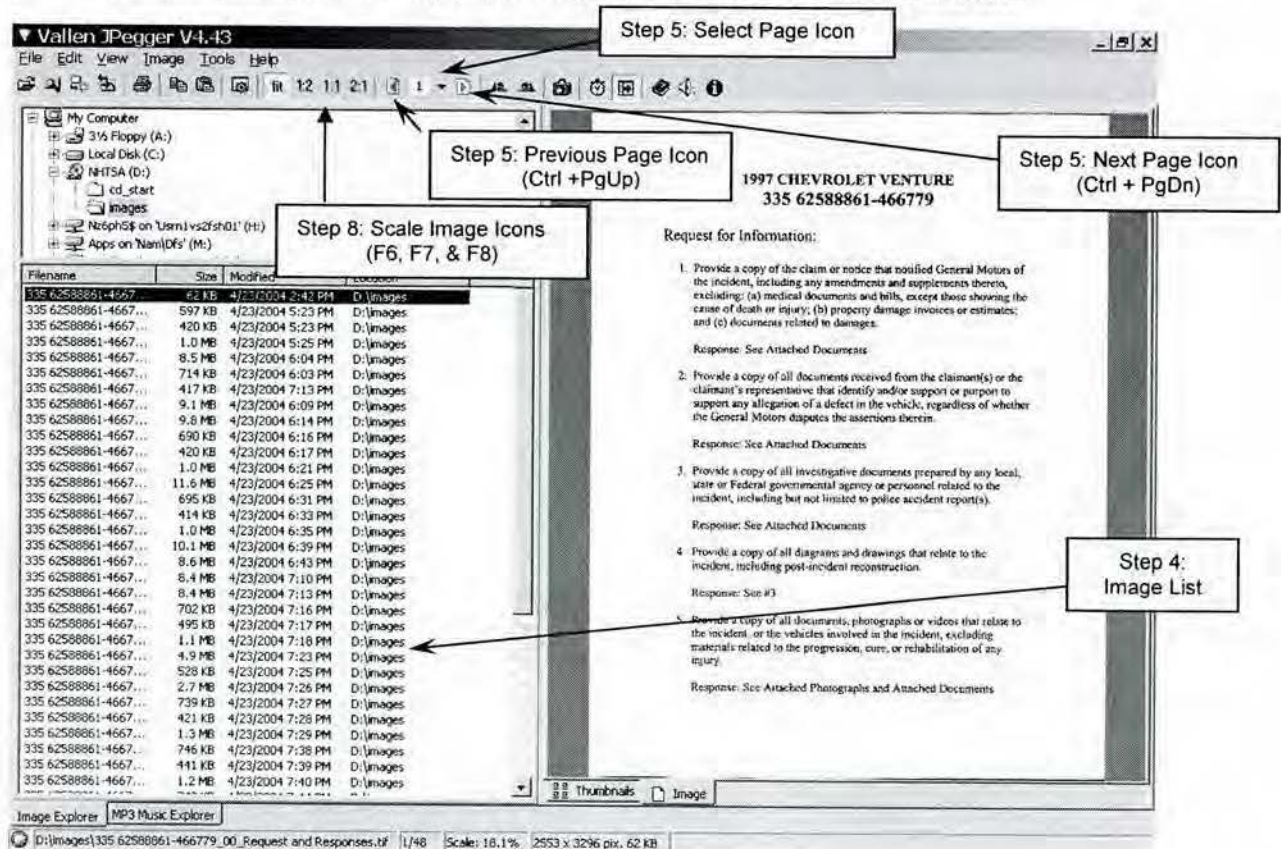
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

The screenshot shows a 'CIVIL CASE COVER SHEET' form for the case 'CARDONA V. CHEVROLET'. The form includes sections for case information, case type, and case details. Annotations on the right side of the form indicate the following steps:

- Step 7: Next File (Image)**: Points to the 'Next Image' button in the 'Next Page' section.
- Step 7: Next page**: Points to the 'Next page' button in the 'Next Page' section.
- Step 8: Scale Image**: Points to the 'Scale' section, which includes buttons for 'Fit Scale to fit', '1:2 Scale 50%', '1:1 Scale 100%', and '2:1 Scale 200%'.
- Step 7: Image Properties**: Points to the 'Image Properties' button in the 'Image Properties' section.

The form also includes a 'NOTICE' section at the bottom, which states that the cover sheet must be filed with the first paper filed in the action or proceeding, and that it must be filed in addition to any cover sheet required by local court rules.

DI09-096
89 278516514 – 669835
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: See Attached Documents. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

Service Request Detail

SR No. (b) (6)	Ref No.	Goodwill	No Goodwill Offered	BRC Type	PAR
Account	Site	GW SubType		Bus. Unit	BRC
Last Name	First Name	Approval	Not Initiated	Area	PAR
Daytime #	Evening #	UCC	Restraints - (SIR) - Driver Front	Sub-Area	Initiate PAR- Collision
Address	City Brenham	Involved Dtr	Laroch Chevrolet-Cadillac, Inc.	Safety	Yes
State TX ZipCd	Con Acct	Source	Phone	Updated	4/15/2009 10:32:48 AM
Serial #/VIN 1G1AL15FX67	Model Year 2006	Priority	Medium License # CHEVROL	Owner	MORALECR
Make Chevrolet	Warr. Start 01/18/2006	Status	Open	Opened	4/13/2009 05:02:14 PM
Model Cobalt	Mileage 35419	Sub-Status	Satisfied	Closed	
Abstract (ESIS) Restraints - (SIR) - Driver Front (Non-Deployment)					
Customer Description	This is a PAR File. Please do not Assume. Forward all Inquiries to Crystal Morales @ 41325				

Pre-PAR

PAR Notifier	Incident Date/Time	Injuries & Other Veh	# People in Veh	Road Surface	Road Cond	Fire Report#	Police Report#
Owner	12/5/2008 05:05:17 PM	Y	1	3 Asphalt	Dry	Unknown	Unknown
Driver Last Name	Driver First Name	Height	DOB	Disabilities			
		54"		I am disabled, I dont speak well and I am a diabetic with high blood pressure, hard to walk			
Insurance Agent Last Name	Insurance Agent First Name	Phone #	Insurance Agency				
Unknown	Unknown	(800) 456-1919	Nipm Insurance				
Incident Loc	Little Maria Street in Brenham, Texas			Incident Desc	It was stalling, lots of traffic, there is an intersection, there was a long line of traffic, in left turn lane, and I got up to the red light, I got into the right lane, another car came out on the right, she was trying to go across and turned towards me, went to hit me head on, so I turned to the left to		
Component	Air bags			Damage Desc	right side, airbags, lights, locks.		
Vehicle Loc				Addl Info	Customer		
Emgcy Svc Names	Officer Hardy, Bryan Police Department			Main Loc	Quick Lane		

PAR Detail

Collision	Y	Non Collision	Property Damage	N	Thermal Evt	N	Spec Equip	n/a
Vehicle Speed	25	Weather Condition	Clear	Prop Owner	n/a	Property Type	n/a	
Last Service Date		Loc Last Service		Property Location	n/a	Prop Est Repair Cost		
Veh Est Repair Cost		Spec Equip Installer	n/a	Prop Damage Description	n/a			
Primary Veh Use	Personal	Inspection Type	Restraint System SIR/Seat Belt	Inspected By	Inspection Not Performed	Inspection Date/Time		
Veh Damage Description	right side damage, airbags, lights, locks.			Explain Other	Case Going to ESIS for injuries-Continuous Chronic Headaches			

Service Request Detail

PAR Injuries

Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
			Occupant of Owner's Vehicle		Driver	Seat Belt
Injury Description			Medical Rpt	Treatment Location		
Whiplash, right foot bruised, bruises, contusions chronic headaches, going to neurosurgeon.			unknown	Texas Clinic (979) 822-2455		
Street Address			City	State	Zip Code	
			Brenham	TX		
Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
			Occupant of Owner's Vehicle		Passenger-side Rear Passenger	Seat Belt (Lap Belt Only-Not fastened correctly due to c-section)
Injury Description			Medical Rpt	Treatment Location		
Whiplash, knee bruising, back soreness			unknown	Texas Clinic (979) 822-2455		
Street Address			City	State	Zip Code	
			Brenham	TX		

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/16/2009 08:26:18 AM	RODRUOS	ESISBIQU	Escalation	ESIS - Injuries	In Progress		Assigned to ESIS
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
Injuries							
Confidential Comments							
Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/15/2009 04:01:25 PM	BURCHAM	RODRUOS	Notify CRM	Other	Done	4/16/2009 08:26:18 AM	ESIS notify
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
Received And Assigned to ESIS							
Jose Rodriguez ATX PAR							
Confidential Comments							

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/15/2009 10:31:14 AM	MORALECR	RODRJOS	BRC PAR	ESIS- Injuries	In Progress		Chronic Continuous Headaches

Contact Last Name	Contact First Name	Account	BAC Code

Comments
ESIS-Injury-Chronic Continuous Headaches

Crystal Morales/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/15/2009 09:59:48 AM	MORALECR	MORALECR	Ownership Changed	Ownership Escalated to BRC	Done	4/15/2009 09:59:48 AM	Ownership Escalated to BRC

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/15/2009 09:59:03 AM	MORALECR	MORALECR	Scheduled Follow-up		Done	4/15/2009 10:31:12 AM	Attempt Dealer INI and then call DVM if no answer or call back

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/15/2009 09:57:47 AM	MORALECR	MORALECR	Outbound Call Dealer	Left Message	Done	4/15/2009 09:58:53 AM	Called Laroche @ (979) 838-6666

Contact Last Name	Contact First Name	Account	BAC Code

Comments
CRS attempted to contact Wayne Bloom for veh hist. Svc Mgr was unavail. CRS left detailed message requesting a call back and advs of the urgent nature of the file.

Crystal Morales/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 04:17:27 PM	MORALECR	MORALECR	Scheduled Follow-up	Scheduled Alarm			Did ESIS pick it up?
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 03:44:59 PM	MORALECR	MORALECR	Scheduled Follow-up	Done		4/15/2009 09:59:02 AM	Complete Dealer INI
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description	
4/14/2009 03:43:29 PM	MORALECR	MORALECR	Outbound Call Dealer	Left Message	Done		4/14/2009 03:44:58 PM	Called Laroche @ (979) 836-6586
Contact Last Name		Contact First Name		Account		BAC Code		
Comments								

CRS left message for Svc Mgr: Wayne Bloom

Attempted to complete initial. Svc Mgr was not avail. CRS attempted to have him paged, receptionist advd he was with someone. CRS left voicemail and physical message for svc mgr.

Crystal Morales/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description	
4/14/2009 10:44:46 AM	KINZERTH	MORALECR	Ownership Changed		Done		4/14/2009 10:44:46 AM	Service Request Ownership has changed FROM: BUTTLE TO: MORALECR
Contact Last Name		Contact First Name		Account		BAC Code		
Comments								

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 10:44:25 AM	KINZERTH	MORALECR	BRC PAR	Initial Contact- AVM	Done	4/14/2009 01:01:27 PM	Called McKinnis-Willie Camalela @ 972075 8154

Contact Last Name	Contact First Name	Account	BAC Code

Comments:
DVM Name: McKinnis-Willie Camalela
Node/Mailbox: 972075 8154
This is Crystal Morales calling from the GM Product Allegation Dept to make you aware of a file that was received in your area.
The request number is: 71-716473079
The Customer's name is (spell):
The dealer involved is: Laroche Chevrolet-Cadillac, Inc.
Located in (be specific): Brenham, TX
The vehicle is a (year/make/model): 2008 Chevrolet Cobalt
With current mileage: 35419
The last 8 digits of the VIN# are: 67
This involves: a mva where the air bag did not deploy when the customer feels that it should have. We will be fully investigating this allegation. This message is for informational purposes only, and requires no action on your part at this time. However, if you do have any questions please feel free to give me a call.
Provided contact info.

Crystal Morales/PAR/ATX

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 10:44:16 AM	KINZERTH	MORALECR	BRC PAR	Initial Contact- Dealer	Done	4/15/2009 10:30:37 AM	Called Laroche @ (979) 836-6666

Contact Last Name	Contact First Name	Account	BAC Code

Comments:
CRS spoke to Svc Mgr Wayne Bloom

We saw the vehicle but we have never worked on it. Customer began talking attorneys and the dealership did not do any work on it.

Are there any known product concerns that relate to the customer's allegation?

Not that I am aware of.

If an inspection becomes necessary would you host that EAA inspection?

Probably not.

Crystal Morales/PAR/ATX

Confidential Comments:

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 10:44:08 AM	KINZERTH	MORALECR	BRC PAR	Initial Contact- Phone	Done	4/14/2009 04:17:24 PM	Called

Comments: Cust sts that she was in the left lane and turning left. Cust sts that another driver came across the turn lane and hit the front of the vehicle toward the right side and then backed up and left. Cust was going approx 25 mph and was injured in the accident. Cust sts that she has chronic headaches and will be referred to a neurologist.

Cust sts why the air bags did not deploy.

CRS advsd that due to the nature of the file/injuries the case will need to go to our Central Claims office. CRS advsd that an agent from Central Claims will follow up with the customer in 7 to 10 business days. CRS advsd if no one has contacted cust by the 10th business day please contact me and I can provide their number and the name of the agent handling the case.

Crystal Morales/PAR/ATX

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 10:44:01 AM	KINZERTH	MORALECR	BRC PAR	Acknowledgement	Done	4/14/2009 03:46:39 PM	Called

Comments: Crs Adv: This is Crystal Morales calling from the GM Product Allegation Dept. I have received your file and do require further information. Do you have a moment to speak to me?

Cust sts: Yes

Continued in Initial

Crystal Morales/PAR/ATX

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 10:43:52 AM	KINZERTH	MORALECR	Notify CRM		Done	4/14/2009 12:24:28 PM	File Assigned

Comments:

Confidential Comments:

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 10:43:45 AM	KINZERTH	MORALECR	Research		Done	4/14/2009 12:53:00 PM	Research VIN
Contact Last Name		Contact First Name		Account		BAC Code	

Comments: [REDACTED]

Open Recalls: None

Closed Recalls: 05217 HEAD IMPACT PROTECTION

Previous Related Cases: None

Previous Closed Cases: None Related. Two cases closed one paint issue, one sales issue

Vehicle Build: AK5 - DRIVER & RIGHT FRONT PASSENGER AIR BAGS

Crystal Morales/PAR/ATX

Confidential Comments: [REDACTED]

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 10:43:28 AM	KINZERTH	MORALECR	BRC PAR	Case Assigned	Done	4/14/2009 12:27:49 PM	Assigned to Crystal Morales x41326
Contact Last Name		Contact First Name		Account		BAC Code	

Comments: [REDACTED]

File Received.

Crystal Morales/PAR/ATX

Confidential Comments: [REDACTED]

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 08:13:04 AM	KINZERTH	BUTTLE	SR Opened		Done	4/14/2009 08:13:04 AM	SR in Status of Closed has been Re-Opened by KINZERTH
Contact Last Name		Contact First Name		Account		BAC Code	

Comments: [REDACTED]

Confidential Comments: [REDACTED]

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/14/2009 08:13:02 AM	KINZERTH	BUTTLE	SR Closed - Satisfied		Done	4/14/2009 08:13:03 AM	Service Request has been Closed Satisfied.
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/13/2009 05:26:51 PM	BUTTLE	KINZERTH	Escalation	Initiate PAR	Done	4/14/2009 08:12:58 AM	Assigning activity to Par Queue
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

CRS adv someone from the BRC will contact the customer within two business days.

Leslie Butt/T1/STJ

Received and assigned in PAR
Thaddeus Kinzer/PAR Workflow/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/13/2009 05:22:54 PM	BUTTLE	BUTTLE	Inbound Call Customer	Complex Request	Done	4/13/2009 05:26:50 PM	Continued from previous activity.
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

Cust sts: My attorney is Monique phone number is 979-846-8666.
Daniela and Spart.

I told them it was the lemon law, they wouldn't hear of it at the dealership, I told them I wanted a 4 door, they overcharged me. It was 24000 dollars, they charged me much more. They ripped people off, that's why they went bankrupt. It should be paid for by now.
Everyone said the airbag should have deployed. I had no idea who to talk to.

CRS adv: Someone from our legal dept here will contact you within two business days. Provided SR number.

Leslie Butt/T1/STJ

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/13/2009 05:21:55 PM	BUTTLE	BUTTLE	Inbound Call Customer	Complex Request	Done	4/13/2009 05:22:53 PM	Air Bag did not deploy

Contact Last Name	Contact First Name	Account	BAC Code

Comments:
Cust sis: We bought an 06 Cobalt from Lawrence Marshall, we are having problems with it. The dealership just closed down. I am still having problems with the car, someone hit my car last year. They it is still messed up and pulling to the right. Took to Garage Chevrolet, they dont want nothing to do with that car. This is not to due with the accident, this is the car. The alarm goes off when you open the door and the hood, no way to turn it off. My airbag is messed up, the warranty went out. I have paperwork, they didnt do anything about it. It does not drive right. I dont know what to do. It is a danger to drive this car. The airbags did not deploy when the accident happened. I am still making payments on it.
Insurance took care of car.
They rushed me in there and never fixed it and just closed down. I told them they had to check the airbag but they never. It also did something to the locks. Now no one can fix it. I can't get out of the car. There was supposed to be a warranty on the tires when I went to Lawrence Marshall. It caused me to have a wreck, it is pulling to the right.
Dec 5th 08
Cust had back problems from accident. Cust daughter in veh had injuries, 3 weeks out of c Section.

VIN: 1G1AL15LX67

Mileage: 35419

Laroche said they didnt want to get involved. They didnt want to get involved with what Lawrence Marshall did. I hate to pay this much money for other peoples mistakes.

Leslie Butt/STJ

Continued...

Confidential Comments:

UCC Information

UCC Code	Symptom	Description
C46	SIR - Did Not Deploy	Restraints - (SIR) - Driver Front

GM Vehicle Inquiry System

Summary

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VIN :	1G1AL15FX67
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VEHICLE INFORMATION

Merchandising Model :	1AL37 -2006 COBALT 2-DOOR LT COUPE	Warranty Start Date :	01/18/2006
BARS Order Type :	70 - RETAIL - STOCK		
Delivering Dealer :	LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD , TX 77445-0983 (979) 826-2411	Selling Source :	13 - CHEVROLET
		Site Code :	30740
		Business Associate Code :	172455
Service Contract :	No	Branded Title :	No
Warranty Block :	No	PDI Status :	Paid

REQUIRED FIELD ACTIONS

Type	Number	Description	Posted Date	Status
RC	06217	HEAD IMPACT PROTECTION	N/A	Closed

SERVICE INFORMATIONAL ITEMS

Vehicle Has No Current Record Of Outstanding Service Information

ON STAR AND XM SATELLITE RADIO INFORMATION

Vehicle Has No Associated On Star or XM Radio Information.

APPLICABLE WARRANTIES

Description	Effective Date	Effective Odometer	End Date	End Odometer
36/36000 BUMPER TO BUMPER LIMITED WARRANTY	01/18/2006	126 miles	01/18/2009	36126 miles
72/100000 SHEET METAL COVERAGE RUST THROUGH LIMITED WARRANTY	01/18/2006	126 miles	01/18/2012	100126 miles
96/80000 FEDERAL EMISSION CATALYTIC CONV. AND PCM	01/18/2006	126 miles	01/18/2014	80126 miles
36/36000 FEDERAL EMISSION	01/18/2006	126 miles	01/18/2009	36126 miles
60/60000 POWERTRAIN - U.S. LIMITED WARRANTY	01/18/2006	126 miles	01/18/2011	60126 miles

CLAIM HISTORY

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R.O Date	R.O Number	Type	Labor Operation	Odometer Reading
11/03/2008	229316	#	C8870 - INFLATABLE RESTRAINT PASSENGER SEAT SUPPRESSION MODULE REP	29117 miles
11/03/2008	229316	#	Z7901 - 1-DAY COURTESY TRANSPORTATION	29117 miles
12/29/2007	185507	#	R4490 - REMOTE CONTROL DOOR LOCK TRANSMITTER REPLACEMENT	21350 miles
09/11/2007	163300	#	R4490 - REMOTE CONTROL DOOR LOCK TRANSMITTER REPLACEMENT	18128 miles
09/11/2007	163300	#	Z7901 - 1-DAY COURTESY TRANSPORTATION	18128 miles
08/29/2007	160433	#	N2114 - SWITCH - DOOR LOCK - RIGHT FRONT - REPLACE	17687 miles
08/29/2007	160433	#	Z7902 - 2-DAY COURTESY TRANSPORTATION	17687 miles
05/08/2007	M18045	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)	8000 miles
04/17/2007	127671	#	V1556 - 06217 - INSTALL ENERGY ABSORBING DEVICE	14988 miles
04/10/2007	L50657	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)	5000 miles
09/15/2006	973482	#	C6625 - LUMBAR ASSEMBLY, FRONT SEAT BACK - LEFT - REPLACE	10928 miles
09/15/2006	973482	#	C6010 - ADJUSTER ASSEMBLY, FRONT SEAT MANUAL - BUCKET SEAT - PASSE	10928 miles
09/13/2006	G22556	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)	3000 miles
09/01/2006	969991	#	C6011 - ADJUSTER ASSEMBLY, FRONT SEAT MANUAL - BUCKET SEAT - DRIVE	10866 miles
05/19/2006	D23993	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)	6000 miles
10/10/2005	A83462	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME	0 miles

CHECK HISTORY INFORMATION

Vehicle Has No Associated Check History Information.
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GM Vehicle Inquiry System

Claim History

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VIN :	1G1AL15FX67
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CLAIM HISTORY

Repair Order Date :		11/03/2008		Repair Order Number :		229816		Odometer Reading :		29117 miles	
Serviced By :		LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD, TX 77445-0983 (979) 826-2411				Selling Source :		13 - CHEVROLET			
						Site Code :		30740			
						Business Associate Code :		172455			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part	Auth Code	Person Code	Line Total	Comments	
11/11/2008	951	01	#	C8870 - INFLATABLE RESTRAINT PASSENGER SEAT SUPPRESSION MODULE REP		N/A	N/A	N/A	\$ 109.47	N	
11/11/2008	951	02	#	Z7901 - 1-DAY COURTESY TRANSPORTATION		N/A	N/A	N/A	\$ 37.00	Y	

Repair Order Date :		12/29/2007		Repair Order Number :		185507		Odometer Reading :		21350 miles	
Serviced By :		LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD, TX 77445-0983 (979) 826-2411				Selling Source :		13 - CHEVROLET			
						Site Code :		30740			
						Business Associate Code :		172455			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
04/01/2008	887	01	#	R4490 - REMOTE CONTROL DOOR LOCK TRANSMITTER REPLACEMENT		22733523 - TRANSMITT		B	N/A	\$ 88.33	Y

Repair Order Date :		09/11/2007	Repair Order Number :		163300	Odometer Reading :		18128 miles	
Serviced By :	LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD, TX 77445-0983				Selling Source :		13 - CHEVROLET		
					Site Code :		30740		

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(979) 826-2411				Business Associate Code :		172455			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation	Part	Auth Code	Person Code	Line Total	Comments
09/28/2007	834	01	#	R4490 - REMOTE CONTROL DOOR LOCK TRANSMITTER REPLACEMENT	N/A	N/A	N/A	\$ 37.93	N
09/28/2007	834	02	#	Z7901 - 1-DAY COURTESY TRANSPORTATION	N/A	N/A	N/A	\$ 37.00	Y

Repair Order Date :		08/29/2007		Repair Order Number :		160433		Odometer Reading :		17687 miles	
Serviced By :		LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD, TX 77445-0983 (979) 826-2411				Selling Source :		13 - CHEVROLET			
						Site Code :		30740			
						Business Associate Code :		172455			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part	Auth Code	Person Code	Line Total	Comments	
09/14/2007	830	01	#	N2114 - SWITCH - DOOR LOCK - RIGHT FRONT - REPLACE		15777129 - SWITCH	N/A	N/A	\$ 46.93	N	
09/14/2007	830	02	#	Z7902 - 2-DAY COURTESY TRANSPORTATION		N/A	G	N/A	\$ 74.00	Y	

Repair Order Date :		05/08/2007		Repair Order Number :		M18045		Odometer Reading :		8000 miles	
Serviced By :		GM ROADSIDE ASSISTANCE/CCAS ONE CABOT RD MEDFORD, MA 02155-5117				Selling Source :		13 - CHEVROLET			
						Site Code :		34415			
						Business Associate Code :		207453			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
05/18/2007	796	01	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)		N/A		C	N/A	\$ 42.75	N

Repair Order Date :		04/17/2007		Repair Order Number :		127671		Odometer Reading :		14988 miles	
Serviced By :	LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD, TX 77445-0983 (979) 826-2411					Selling Source :		13 - CHEVROLET			
						Site Code :		30740			
						Business Associate Code :		172455			
Cycle	Cycle	Case	Type	Labor Operation		Part		Auth	Person	Line	Comments

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Date	Nbr					Code	Code	Total	
04/24/2007	789	01	#	V1556 - 06217 - INSTALL ENERGY ABSORBING DEVICE	25844441 - ABSORBER	N/A	N/A	\$ 62.80	N

Repair Order Date :		04/10/2007		Repair Order Number :		L50657		Odometer Reading :		5000 miles	
Serviced By :		GM ROADSIDE ASSISTANCE/CCAS ONE CABOT RD MEDFORD, MA 02155-5117				Selling Source :			13 - CHEVROLET		
						Site Code :			34415		
						Business Associate Code :			207453		
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
04/20/2007	788	01	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)		N/A		C	N/A	\$ 42.75	N

Repair Order Date :		09/15/2006		Repair Order Number :		973482		Odometer Reading :		10928 miles	
Serviced By :		LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD, TX 77445-0983 (979) 826-2411				Selling Source :		13 - CHEVROLET			
						Site Code :		30740			
						Business Associate Code :		172455			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part	Auth Code	Person Code	Line Total	Comments	
09/22/2006	728	01	#	C6625 - LUMBAR ASSEMBLY, FRONT SEAT BACK - LEFT - REPLACE		N/A	N/A	N/A	\$ 102.38	N	
09/22/2006	728	02	#	C6010 - ADJUSTER ASSEMBLY, FRONT SEAT MANUAL - BUCKET SEAT - PASSE		N/A	N/A	N/A	\$ 73.13	N	

Repair Order Date :		09/13/2006		Repair Order Number :		G22956		Odometer Reading :		3000 miles	
Serviced By :		GM ROADSIDE ASSISTANCE/CCAS ONE CABOT RD MEDFORD, MA 02155-5117				Selling Source :		13 - CHEVROLET			
						Site Code :		34415			
						Business Associate Code :		207453			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part	Auth Code	Person Code	Line Total	Comments	
09/22/2006	728	01	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)		N/A	C	N/A	\$ 44.07	N	

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Repair Order Date :		09/01/2006		Repair Order Number :		969991		Odometer Reading :		10866 miles	
Serviced By :		LAWRENCE MARSHALL CHEVROLET PO BOX 983 HEMPSTEAD, TX 77445-0983 (979) 826-2411				Selling Source :		13 - CHEVROLET			
						Site Code :		30740			
						Business Associate Code :		172455			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part	Auth Code	Person Code	Line Total	Comments	
09/08/2006	724	01	#	C6011 - ADJUSTER ASSEMBLY, FRONT SEAT MANUAL - BUCKET SEAT - DRIVE		15901630 - ADJUSTER	N/A	N/A	\$ 261.51	N	

Repair Order Date :		05/19/2006		Repair Order Number :		D23993		Odometer Reading :		6000 miles	
Serviced By :		GM ROADSIDE ASSISTANCE/CCAS ONE CABOT RD MEDFORD, MA 02155-5117				Selling Source :		13 - CHEVROLET			
						Site Code :		34415			
						Business Associate Code :		207453			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
05/26/2006	694	01	#	Z2084 - ROADSIDE SERVICE (FLAT TIRE)		N/A		C	N/A	\$ 44.07	N

Repair Order Date :		10/10/2005		Repair Order Number :		A83462		Odometer Reading :		0 miles	
Serviced By :		ALLEN SAMUELS CHEVROLET, INC. PO BOX 36889 HOUSTON, TX 77236-6889 (281) 754-7000				Selling Source :		13 - CHEVROLET			
						Site Code :		30354			
						Business Associate Code :		157858			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
10/14/2005	630	01	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME		N/A		N/A	N/A	\$ 100.98	N

CHECK HISTORY

Vehicle Has No Associated Check History.
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TA000102462

GM Vehicle Inquiry System

Vehicle Build

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VIN	1G1AL15FX67
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VEHICLE BUILD

Merchandising Model :	1AL37 -2006 COBALT 2-DOOR LT COUPE		
Gross Vehicle Weight Rating :	1686 kg (3718 lb)	Order Number :	JMDF06
Build Date :	10/10/2005	Build Plant :	167A

GMVIS is not the definitive source of GM Vehicle RPO information and is intended for service reference only. Should there be any questions about the vehicle's original build or RPO information please refer to the original vehicle invoice or window sticker.

OPTION CODES

AK5 - DRIVER & RIGHT FRONT PASSENGER AIR BAGS	AR9 - DELUXE FRONT BUCKET SEAT
B34 - FLOOR MATS	B35 - REAR FLOOR MATS
C67 - ELECT. FRONT AIR CONDITIONER	DG7 - BODY COLOR POWER MIRRORS
DT4 - ASHTRAY AND LIGHTER	FE1 - SUSPENSION SYSTEM-SOFT RIDE
FE9 - FEDERAL EMISSIONS	FY1 - TRANS/AXLE 3.63 RATIO
IPC - INTERIOR TRIM DESIGN	JJK - SUSPENSION, REAR INSTALLED
JM4 - 4-WHEEL ANTI-LOCK BRAKE SYSTEM	K64 - 115 AMP GENERATOR
LOD - ASSEMBLY PLANT - LORDSTOWN, OHIO	L61 - 2.2L DOHC 4 CYL ENGINE
MN5 - 4 SPEED AUTO TRANSMISSION	MX0 - 4-SPD. AUTO. TRANS. W/OVERDRIVE
NT7 - FEDERAL EMISSION TIER 2	NW7 - TRACTION CONTROL
N46 - 4 SPOKE STEERING WHEEL	PF7 - 15" ALUMINUM WHEELS
QTU - P195/60R15 TOURING BW TIRES	R6P - PREMIUM PAINT
R9U - GM ACCESS - AUTOBOOK IDENTIFIER	SLM - STOCK ORDERS
UQ4 - BASE SPEAKER SYSTEM	US8 - AM/FM STEREO W/CD & MP3 (REPLACES STD/OPT RADIO)
VK3 - FRONT LICENSE PLATE MOUNT	V73 - STATEMENT OF VEHICLE CERT.- U.S./CANADA
1LT - 1LT BASE PACKAGE	1SZ - OPTION PACKAGE DISCOUNT
14C - GRAY	14I - GRAY
46U - BLUE GRANITE METALLIC	6AR - FRONT SPRING

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7AR - FRONT SPRING	8AA - REAR SPRING
9AA - REAR SPRING	

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☐ FATAL ☐ CIVIL INVOLVED ☐ SCHOOL BUS RELATED ☐ RAILROAD RELATED ☐ MEDICAL ADVISORY BOARD ☒ HIT AND RUN ☐ AMENDMENT/SUPPLEMENT


Texas Peace Officer's Crash Report

Submission of Crash Records: This report may be submitted via the CRIS Web Portal, electronically submitted via XML, or by mailing to the Texas Department of Transportation, Crash Records, PO Box 149349, Austin, TX 76714. Questions? Call: 512/486-5780

Form CR-3
(REV. 04/05)
(TSS-EPC)
Page 1 of 2

COPY

PLACE WHERE CRASH OCCURRED		LOC 3		(b) (6)	
COUNTY	Brazos	CITY OR TOWN	Bryan	CRS	(b) (6)
IF CRASH WAS OUTSIDE CITY LIMITS INDICATE FROM NEAREST TOWN		MILES N S E W OF		TADOT #	
ROAD ON WHICH CRASH OCCURRED		BLOCK NUMBER		STREET OR ROAD NAME	
500		East Villa Maria		FM 1179	
INTERSECTING STREET OR R/W CROSS NUMBER		BLOCK NUMBER		STREET OR ROAD NAME	
3000		Maloney		-	
NOT AT INTERSECTION		MILES N S E W OF		SHOW NEAREST OR NEARLY INTERSECTING ROADWAY, IF NONE, SHOW NEAREST INTERSECTING STREET OR REFERENCE POINT	
CONSTRUCTION ZONE WORKERS PRESENT		CONSTRUCTION ZONE WORKERS PRESENT		SPEED LIMIT	
☐ YES ☒ NO		☐ YES ☒ NO		35	
☐ YES ☒ NO		☐ YES ☒ NO		30	
LATITUDE		LONGITUDE			
DATE OF CRASH		DAY OF WEEK		HOUR	
December 5, 2008		Friday		3:40	
UNIT 1		1-MOTOR VEHICLE		ALTERED VEHICLE HEIGHT	
2-TRAIN		4-PEDESTRIAN		☐ YES ☒ NO	
3-PEDALCYCLIST		5-MOTORIZED CONVEYANCE			
YEAR MODEL		COLOR & MAKE		LICENSER	
2006		Blue Chev		09 TX	
DRIVER'S NAME		LAST		FIRST	
TX		C		none	
DRIVER'S LICENSE		CLASS TYPE		RESTRICTIONS	
TX		C		none	
DRIVER'S ETHNICITY		4-ASIAN		DRIVER'S OCCUPATION	
2		2-HISPANIC		Unemployed	
3-BLACK		5-OTHER SEX		POLICE, FIREFIGHTER, EMS, ON EMERGENCY	
TYPE OF ALCOHOL SPECIMEN TAKEN		4-REFUSED		TYPE OF DRUG SPECIMEN TAKEN	
1-BREATH 2-BLOOD 3-URINE 4-NONE 5-REFUSED		4		1-BLOOD 2-URINE 3-NONE 4-REFUSED	
3		TEST RESULTS		3	
LESSOR		NAME (ALWAYS SHOW LESSEE IF LEASED, OTHERWISE SHOW OWNER)		ADDRESS (STREET, CITY, STATE, ZIP)	
☒ OWNER		same		same	
LIABILITY INSURANCE		YES		VEHICLE DAMAGE RATING	
☒ NO		Unitrin County Mutual		FRI	
EXP. INSURANCE COMPANY		POLICY NUMBER			
UNIT 2		1-MOTOR VEHICLE		ALTERED VEHICLE HEIGHT	
2-TRAIN		4-PEDESTRIAN		☐ YES ☒ NO	
3-PEDALCYCLIST		5-MOTORIZED CONVEYANCE			
YEAR MODEL		COLOR & MAKE		LICENSER	
2000		Black Pontiac		09 TX	
DRIVER'S NAME		LAST		FIRST	
None		-		-	
DRIVER'S LICENSE		CLASS TYPE		RESTRICTIONS	
None		-		-	
DRIVER'S ETHNICITY		4-ASIAN		DRIVER'S OCCUPATION	
2		2-HISPANIC		Unemployed	
3-BLACK		5-OTHER SEX		POLICE, FIREFIGHTER, EMS, ON EMERGENCY	
TYPE OF ALCOHOL SPECIMEN TAKEN		4-REFUSED		TYPE OF DRUG SPECIMEN TAKEN	
1-BREATH 2-BLOOD 3-URINE 4-NONE 5-REFUSED		4		1-BLOOD 2-URINE 3-NONE 4-REFUSED	
3		TEST RESULTS		3	
LESSOR		NAME (ALWAYS SHOW LESSEE IF LEASED, OTHERWISE SHOW OWNER)		ADDRESS (STREET, CITY, STATE, ZIP)	
☒ OWNER		same		same	
LIABILITY INSURANCE		YES		VEHICLE DAMAGE RATING	
☒ NO		ACCC General Agency		LFG 2	
EXP. INSURANCE COMPANY		POLICY NUMBER			
DAMAGE TO PROPERTY OTHER THAN VEHICLES					
OBJECT NAME AND ADDRESS OF OWNER FEET FROM CURB DAMAGE ESTIMATE					
IN YOUR OPINION, DID THIS CRASH RESULT IN AT LEAST \$1,000.00 DAMAGE TO ANY ONE PERSON'S PROPERTY? ☒ YES ☐ NO					
CHARGES FILED					
NAME		CHARGE		CITATION #	
J. Harvey		Parking			
NAME		CHARGE		CITATION #	
J. Harvey		Parking			
DATE NOTIFIED OF CRASH		TIME ARRIVED AT SCENE		DATE OF REPORT	
12-5-08 3:41pm		12-5-08 3:53pm		12-5-08	
REPORTED OR PRINTED NAME OF INVESTIGATOR		ID #		AGENCY	
J. Harvey		279		Bryan PD	
DISTANCE		REPORT COMPLETE		☐ YES ☒ NO	

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ESIS/GM Central Claims Unit
P.O. Box 300
Mail Code 482 C19 B61
Detroit, MI 48265-3000

800.888.0164 *tel*
313.665.0911 *fax*

Annette Rigdon
Claims Administrator

May 26, 2009

[REDACTED]
Brenham, TX [REDACTED]

RE: Claimant: [REDACTED]
Our File No.: 669835
Our Client: General Motors Corporation
Date/Event: 12-5-08
VIN: 1G1AL15FX67 [REDACTED]

Dear [REDACTED]

This will confirm that we have completed our review of your claim regarding your 2006 Chev. Cobalt. At this time, based on all documentation received and reviewed, ESIS, on behalf of General Motors Corporation, will not be in a position to honor your request for damages. If you have any additional evidence that supports your claim of a product defect, please forward it to my attention for further review.

Also, you have an obligation and responsibility to ensure that the subject vehicle and its related components are maintained and preserved in their immediate post-incident condition for as long as you intend to pursue a claim and/or cause of action.

Sincerely,

Annette Rigdon
Claims Administrator